

1963 CHAPTER 56

An Act to provide for the grant of a new constitution for the Bahama Islands. [3rd December 1963]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Power to provide by Order in Council for the government of the Bahama Islands.

1.—(1) Her Majesty may by Order in Council make such provision as appears to Her expedient for the government of the Bahama Islands.

(2) Any Order in Council under this section may vary or revoke or provide for the variation or revocation of any Letters Patent relating to the government of the Bahama Islands, any instrument issued in pursuance of any such Letters Patent and any Act of the Legislature of those Islands so relating.

(3) Any Order in Council under this section may be varied or revoked by a subsequent Order in Council thereunder, but otherwise shall not be capable of being varied or revoked except by Act of Parliament.

(4) Any Order in Council under this section shall be laid before Parliament after being made.

Short title.

2. This Act may be cited as the Bahama Islands (Constitution) Act 1963.

1963 CHAPTER 57

An Act to make provision as to the operation of the law in relation to Nigeria as a Republic within the Commonwealth. [18th December 1963]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Operation of existing law.

1.—(1) Subject to this Act, all law which, whether being a rule of law or a provision of an Act of Parliament or of any other enactment or instrument whatsoever, was in force on

1st October 1963, or, having been passed or made before that day, comes or has come into force thereafter, shall, unless and until provision to the contrary is made by Parliament or some other authority having power in that behalf, have the same operation in relation to Nigeria, and persons and things belonging to or connected with Nigeria, as it would have apart from this subsection if Nigeria had not become a Republic.

(2) This section applies to law of or of any part of the United Kingdom, the Channel Islands and the Isle of Man and, in relation only to any enactment of the Parliament of the United Kingdom or any Order in Council made by virtue of any such enactment whereby any such enactment applies in relation to Nigeria, to law of any other country or territory to which that enactment or Order extends.

(3) Nothing in this section shall be construed as enabling Her Majesty to entertain any appeal from a court or judge in Nigeria, other than an appeal from a decision given before 1st October 1963 in respect of which the Judicial Committee of the Privy Council have jurisdiction according to the law of the Republic of Nigeria.

(4) This section shall be deemed to have had effect from 1st October 1963.

2.—(1) Her Majesty may by Order in Council make such adaptations in any Act of Parliament passed before 1st October 1963 as appear to Her necessary or expedient in consequence of Nigeria having become a Republic. Power to make consequential adaptations.

(2) Any Order in Council made under subsection (1) of this section, and any Order in Council or other instrument made under any other enactment which varies or revokes a previous Order in Council or instrument in consequence of Nigeria having become a Republic, may be made so as to have effect from 1st October 1963.

(3) Any Order in Council under subsection (1) of this section shall be subject to annulment in pursuance of a resolution of either House of Parliament, and may be varied or revoked by a subsequent Order in Council.

3. This Act may be cited as the Nigeria Republic Act 1963.

Short title.

